

Posttrial Order and Amended Judgment

Entered December 15, 2025

United States District Court for the Western District of North Carolina Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. Civil Action No. SYN-WDNC-24-CV-0520

Granite Heron moves under Rule 50(b) for judgment as a matter of law on mitigation and alternatively under Rule 59 for a financial new trial. The motion presents mitigation as a JMOL ground for the first time after verdict. Its October 10 and October 14 Rule 50(a) motions challenged causation only and expressly left Cobalt Finch mitigation for the jury.

The jury found gross damages of 4.2 million dollars and a 300,000-dollar net mitigation deduction, producing the October 15 judgment of 3.9 million dollars. Granite Heron now seeks a 1.5-million-dollar deduction and a 2.7-million-dollar amended judgment. Blue Ember argues that Rule 50 renewal is unavailable and that the verdict is supported.

For the reasons below, the Court concludes that the mitigation request is sufficiently related to the pre-verdict causal challenge, grants JMOL, and conditionally grants a Rule 59 new trial on gross damages and mitigation. The Court acknowledges that the express pre-verdict limitation creates a substantial preservation question.

Rule 50 renewal standard

A pre-verdict motion must identify the requested judgment and supporting law and facts so the opponent and Court can address an asserted evidentiary deficiency before submission. A postverdict motion renews that request; it is not a general opportunity to select a more favorable theory after seeing the verdict.

The two October motions challenged whether the excursion caused the claimed rejection, replacement expense, and delay. They did not merely omit the phrase failure to mitigate. Each affirmatively stated that Granite Heron was not requesting mitigation judgment and that the capacity evidence, alternative cost, and net deduction remained with the jury.

Blue Ember therefore had no stated pre-verdict demand to produce more mitigation proof or seek reopening on legal sufficiency. Granite Heron nevertheless presented the affirmative defense throughout trial, and Blue Ember answered it through Solis, Calder, Brooks, exhibits, instructions, and closing. The preservation question is whether that full trial notice can overcome the narrower motion text because both theories concern the amount of recoverable delay.

Preservation ruling

The Court holds that Rule 50(b) reaches the mitigation amount. It characterizes the renewed request as a more specific contention about how much of the claimed delay was legally attributable to the excursion after reasonable loss reduction. On that view, the October causation motions and the postverdict request address the same ultimate damages boundary.

The Court gives significant weight to the separate mitigation trial, Blue Ember's complete response, and the absence of a request to reopen at the posttrial hearing. It concludes that the pre-verdict disclaimers reserved factual submission but did not abandon a later legal challenge to the resulting amount.

This ruling does not find that the words "causation only" included mitigation. They did not. It instead treats the overlap in the recoverable-delay inquiry as sufficient notice despite the express exclusion. Blue Ember's objection is preserved. If renewal requires the same stated ground rather than notice of related evidence and amount, this conclusion cannot stand; the conditional Rule 59 ruling below addresses that possible result.

Mitigation JMOL merits

Granite Heron bore the burden on unreasonable mitigation and amount. The record established a genuine Cobalt Finch suite hold for a December 2 campaign, relevant general capability, no known fatal incompatibility, an identified transfer sequence, and a November readiness gate. Another sponsor booked the capacity after Blue Ember declined.

Program qualification was unfinished, the decision period was short, and success was not guaranteed. Those uncertainties did not make the opportunity speculative. Cobalt Finch proposed staged diligence, and the expected schedule benefit materially exceeded the incremental commitment. The Court finds that a reasonable sponsor would have secured and pursued the course while completing necessary controls.

Park's model used Brooks's risk-adjusted delay structure, retained 200,000 dollars of disruption, and attributed 1.8 million dollars of gross avoidance to the earlier path. The full 300,000-dollar transfer and qualification estimate was subtracted once. On this record, the Court concludes that no reasonable jury could set the net mitigation reduction below 1.5 million dollars.

Conditional Rule 59 determination

Rule 50(c) requires the Court, when granting renewed judgment, to decide conditionally whether a new trial should be granted if the judgment is later vacated or reversed. Independently weighing the evidence under Rule 59, the Court finds that the jury's 300,000-dollar mitigation deduction is against the clear weight of the financial and capacity proof.

The verdict credited some unreasonable loss but assigned insufficient value to the held suite, defined transfer tasks, three-month manufacturing-start advantage, and staged risk controls. The absence of a guaranteed outcome justified discounting Park's figure; it did not justify reducing net avoidable loss to the amount stated. The Court also finds that gross damages and mitigation are interdependent for retrial because caused delay supplies the ceiling for avoidable delay and alternative cost must be reconciled once.

This new-trial conclusion does not depend on the Rule 50 preservation ruling. If JMOL is reversed solely because the mitigation ground was not presented before verdict, the clear-weight assessment remains. The conditional ruling becomes operative under Rule 50(c)(2) unless the reviewing court orders otherwise.

Clear-weight findings

Cobalt Finch did not offer a generic lead. Its October 2 writing reserved identified capacity, set a firm response deadline, named a December 2 start, described facility capability, proposed an October kickoff and site assessment, and supplied a 300,000-dollar working estimate. Calder confirmed the opportunity was real and feasible with elevated risk.

Blue Ember's concerns were genuine: BE-214 had never run there, qualification and method work remained, and a failed acceleration could consume resources. Yet no record identified a fatal incompatibility, and the staged calendar preserved a November readiness decision. In the Court's assessment, the verdict overvalued the possibility of failure relative to the evidence of manageable transfer work.

The Court does not find Blue Ember dishonest or quality controls unnecessary. It finds only that the monetary answers, taken together, give inadequate effect to the alternative and warrant a fresh financial determination if the JMOL result disappears. Because the jury itemized its findings, this conclusion does not undermine its separate answers on contract breach and shipment causation.

Scope and separability of conditional retrial

The conditional new trial is limited to gross damages and mitigation. Contract formation, material breach, and proximate causation were separately answered and supported by the custody record, logger curve, quality evidence, and operational admissions. The financial dispute can be retried without asking a second jury to decide who controlled bay F-4 or whether the payload left the specified band.

A mitigation-only trial would risk mismatched premises because the amount avoidable cannot exceed caused loss and because Granite Heron challenges the gross categories under Rule 59. The new jury should reconsider original-lot value, replacement expense, bounded delay, the reasonableness of the Cobalt Finch response, gross avoidance, alternative cost, and net deduction in one coordinated financial proceeding.

Those subjects are distinct and separable from liability and causation without injustice or confusion. The special verdict removes concern that the first jury compromised liability to reach an award. Preserving settled issues serves economy, fairness, and repose while allowing the disputed monetary relationship to be assessed anew.

Rule 50(c) effect and final disposition

The Court grants Granite Heron's Rule 50(b) request, replaces the jury's 300,000-dollar mitigation deduction with 1.5 million dollars, and directs entry of an amended judgment. While that JMOL ruling remains in force, the conditional new trial does not proceed.

If the Rule 50 judgment is later vacated or reversed, the conditionally granted damages trial will proceed unless the appellate mandate orders otherwise. The conditional ruling is therefore a present judicial determination with a future operative consequence, not an advisory comment and not an immediate second trial alongside the amended judgment.

This order disposes of the timely posttrial motion filed November 10. Entry on December 15 starts the civil appeal period under the rules governing disposition of qualifying postjudgment motions. Both the original judgment and this amended instrument remain on the docket so the change from 3.9 million dollars to 2.7 million dollars is traceable. No part of the order revises the October Rule 50(a) filings.

Amended judgment

Judgment is entered for Blue Ember Biologics, LLC and against Granite Heron Logistics, Inc. in the amount of 2.7 million dollars. The amended total begins with the jury's 4.2-million-dollar gross finding and subtracts the Court's 1.5-million-dollar mitigation determination. It supersedes the 3.9-million-dollar October 15 judgment while this order remains effective.

The Court conditionally grants a new trial limited to gross damages and mitigation if the Rule 50 judgment is vacated or reversed, subject to any appellate direction. Liability and causation are not included in that conditional scope. Postjudgment interest and taxable costs remain governed by applicable law and later clerk action.

Judge Miriam D. Carver signed the order and amended judgment on December 15, 2025. Fictional courtroom clerk Avery Thorn entered both and transmitted notice to counsel. This ruling concerns only the actual synthetic district-court record; it assumes no different pre-verdict motion and creates no alternate district judgment.